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HUNTER *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 24–1063. Argued March 3, 2026—Decided June 18, 2026

Petitioner Munson Hunter III was charged with 10 counts of bank and wire fraud for a years-long scheme costing various financial institutions about half a million dollars. He entered into a written plea agreement with the Government under which he pleaded guilty to one count of aiding and abetting wire fraud in exchange for dismissal of the remaining nine charges and a promise not to prosecute him for the described conduct in the future. The agreement included an appeal waiver under which Hunter waived the right to appeal his conviction and sentence, except that he did not waive the right to raise a claim of ineffective assistance of counsel. The agreement further provided that "any modification" of its terms "must be in writing and signed by all parties." The District Court accepted the plea after deeming it knowing and voluntary.

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At sentencing, the Probation Office recommended that as a condition of supervised release Hunter be required to participate in a mental-health treatment program and take all mental-health medications prescribed by his treating physician. Hunter objected to the mandatory-medication part of that condition. The District Court told Hunter that if "the treatment provider prescribes drugs, you should take them," while also telling Hunter that he could "address" any future dispute about medication "to the probation officer" or, if needed, "to me." The District Court then imposed a sentence of 51 months in prison followed by three years of supervised release, including the contested medication condition. At the close of the hearing, the court told Hunter: "All right. You have a right to appeal. If you wish to appeal, [your trial counsel] will continue to represent you." When asked if either party wished to say anything else, Hunter's lawyer said "Nothing from the defense," and the prosecutor replied: "Your Honor, I believe—well, no. I—no."

Hunter appealed, challenging the mandatory-medication condition as infringing on his "fundamental due process liberty interest in being free of unwanted mental health medication." The Government sought dismissal based on the appeal waiver. Hunter acknowledged he had knowingly and voluntarily signed the waiver but argued that an appeal waiver is unenforceable when the disputed aspect of a sentence violates a fundamental constitutional right, and alternatively that the District

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Court's statement at sentencing about appeal rights, along with the prosecutor's failure to object, voided the waiver. The Court of Appeals for the Fifth Circuit dismissed the appeal, holding that the District Court's misstatement "did not impact the validity of the appeal waiver" and that under Circuit precedent the "general rule" that appeal waivers are enforceable has only two exceptions: when the waiver was tainted by ineffective assistance of counsel and when the sentence exceeded the statutory maximum. Because neither exception applied, the Fifth Circuit held that Hunter's appeal could not go forward.

Held: An agreement not to appeal a sentence is unenforceable when it would result in a miscarriage of justice—meaning, when it would leave in place the kind of egregious error that would bring the judicial system into disrepute. Pp. 721–730.

(a) The District Court's misstatement at sentencing and the Government's silence did not negate Hunter's knowing and voluntary appeal waiver. The plea agreement specified that "[a]ny modification" of its terms "must be in writing and signed by all parties," and even assuming away that provision, nothing that happened in the sentencing hearing shows the mutual agreement between parties needed to accomplish a modification. The court's statement about appeal rights could not change the parties' agreement because it is the parties' intent that matters, and their non-response falls far short of showing agreement to alter a conflicting term.

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The Government did not waive or forfeit its right to enforce the appeal waiver by failing to correct the court's misstatement. Under ordinary litigation principles, waiver requires some affirmative signal of abandonment, and staying silent—as here, not picking a fight—does not qualify. Forfeiture generally does happen through silence because it is the failure to make the timely assertion of a right, but the proper time for the Government to assert its right to enforce an appeal waiver is after a defendant files a notice of appeal, not at sentencing. The decision that Hunter's appeal waiver remains valid matches one the Court reached in a nearly mirror-image case, *Class* v. *United States*, 583 U. S. 174. Pp. 721–723.

(b) The question becomes whether the Government's right to enforce an appeal waiver has limits and, if so, what they are. It is common ground that an appeal waiver must be knowing and voluntary to be valid and thus to be enforceable, and that an appeal waiver is not knowing and voluntary if it was the product of ineffective assistance of counsel. Putting that to the side, the Fifth Circuit holds appeal waivers unenforceable only when the sentence exceeds the statutory maximum. The Government maintains that knowing and voluntary appeal waivers are

always enforceable. But most courts of appeals have instead taken a less stringent approach, declining to enforce appeal waivers when doing so would produce a "miscarriage of justice." The question for the Court is which position is right.

The answer stems from the special, and indeed pivotal, role of the judiciary in approving and implementing appeal waivers. A district court must accept the plea agreement, including any appeal waiver, before it can go into effect, and that decision is one given over to "sound judicial discretion." *Santobello* v. *New York*, 404 U. S. 257, 261–262. An appeal waiver then falls into the lap of a court of appeals, which has exclusive control over its operation; the real-world effect of a waiver turns only on whether the appeals court decides to enforce it, and enforcement will cement into place a district court's sentence whether or not lawful. Because that is so, the standard for enforcing appeal waivers implicates the interests not only of the plea agreement's parties, but also of the judiciary. If a court always enforces appeal waivers regardless of the kind or degree of error tainting a sentence, the judicial system's integrity may come into question. The Court has recognized when addressing waivers of other rights held by criminal defendants that federal courts have an "independent" "institutional interest" in ensuring that legal proceedings "appear fair to all who observe them," *Wheat* v. *United States*, 486 U. S. 153, 160, and that some rules may be "so fundamental" that they could not be waived "without irreparably discrediting the federal courts," *United States* v. *Mezzanatto*, 513 U. S. 196, 204. Whatever the parties have agreed to, the court's own responsibility when enforcing a waiver is apparent, and so automatic enforcement may "risk[ ] institutional harm." *Id.*, at 205.

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Accordingly, neither the Government's nor the Fifth Circuit's proposed rule can be the right one. The Government's position first runs into the scenario that even the Fifth Circuit will not tolerate: when a judge imposes a sentence beyond what the relevant statute allows. Suppose a judge sentences a misdemeanant to life in prison, when the applicable law caps a prison term at one year; if an appellate court had to dismiss the resulting appeal, it would call into doubt the judicial system's very attachment to law. But so too would a dismissal in certain other situations, which fall outside both the Government's and the Fifth Circuit's rules—for example, if the sentencing judge unconstitutionally considered race or religion, imposed a condition that a defendant not become pregnant, or "let an orangutan pick a sentence out of a hat." Tr. of Oral Arg. 66. However certain the parties' agreement, the courts are too enmeshed in its approval and implementation to escape responsibility for such results. Pp. 723–727.

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(c) The Court thus approves the majority view among the courts of appeals that an appeal waiver is unenforceable when it would result in a miscarriage of justice. The miscarriage-of-justice standard sets a high bar. The waiver may be set aside only if the sentence is marred by the kind of egregious error that would bring the judicial system into disrepute. The error must be obvious—not one a judge could reasonably make—and must be of the type that would undermine public confidence in the judiciary. Standard-fare errors in misapplying sentencing law cannot cancel an appeal waiver. But a high bar is not the same as an insurmountable one; the miscarriage-of-justice limit, as many appellate courts have properly applied it, offers a safety valve for extreme cases when the justice system's basic integrity is at stake.

The nature of the miscarriage-of-justice limit precludes any attempt to list all the situations in which it will overcome an appeal waiver. But a few examples of the kinds of errors that would bring the judiciary into disrepute may provide guidance to lower courts: a sentence exceeding what the relevant statute allows; a sentence infected with a blatant constitutional error, such as when a judge takes account of a constitutionally impermissible factor (like race) or imposes a constitutionally infirm condition of supervised release; and a sentence imposed without some minimum of civilized procedure. These examples are just examples, not intended to be exclusive, but they serve to illustrate the high bar a defendant must surmount to overcome an appeal waiver.

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The Court doubts that this confined exception will "open the floodgates" to "waived appeals." Tr. of Oral Arg. 60, 87. Many Circuits already apply a miscarriage-of-justice limit, and the Government has offered no evidence those courts are awash with appeals. The Circuits using this approach have understood it to erect a substantial barrier, and such a hard-to-meet standard presumably deters many appeals while those still filed can often be quickly dismissed because the errors asserted are uncertain or ordinary. Pp. 727–729.

(d) The Court declines to decide in the first instance whether Hunter's challenge to the mandatory-medication condition satisfies the miscarriage-of-justice standard. The Court of Appeals did not address the question, and this Court is "a court of review, not of first view," *Cutter* v. *Wilkinson*, 544 U. S. 709, 718, n. 7. It is therefore up to the Fifth Circuit to decide whether enforcing Hunter's appeal waiver would result in a miscarriage of justice. Pp. 729–730.

Vacated and remanded.

KAGAN, J., delivered the opinion of the Court, in which ROBERTS, C. J., and ALITO, SOTOMAYOR, GORSUCH, KAVANAUGH, BARRETT, and JACKSON,

JJ., joined. GORSUCH, J., filed a concurring opinion, in which SOTOMAYOR and JACKSON, JJ., joined, *post*, p. 730. KAVANAUGH, J., filed a concurring opinion, in which ALITO and BARRETT, JJ., joined, *post*, p. 745. BARRETT, J., filed a concurring opinion, *post*, p. 746. THOMAS, J., filed a dissenting opinion, *post*, p. 748.

Lisa S. Blatt argued the cause for petitioner. With her on the briefs were *Charles L. McCloud*, *James N. Sasso*, *Dana B. Kinel*, *Mihir Khetarpal*, *Rohit P. Asirvatham*, *Christopher J. Baldacci*, and *Brent E. Newton*.

Zoe A. Jacoby argued the cause for the United States. With her on the brief were *Solicitor General Sauer*, *Assistant Attorney General Duva*, *Deputy Solicitor General Feigin*, and *William G. Clayman*.*

JUSTICE KAGAN delivered the opinion of the Court.

Plea agreements between a criminal defendant and the Government often include an appeal waiver—a promise by the defendant not to appeal his conviction or eventual sentence. In this case, we address a dispute about when such a promise is unenforceable in the sentencing context. We principally hold that an agreement not to appeal a sentence is unenforceable when it would result in a miscarriage of justice—meaning, when it would leave in place the kind of egregious error that would bring the judicial system into disrepute.

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*Briefs of *amici curiae* urging reversal were filed for the Cato Institute et al. by *Matthew P. Cavedon*, *Daniel Greenberg*, *John W. Whitehead*, *Cecillia D. Wang*, *Yasmin Cader*, *Brandon Buskey*, and *Savannah Kumar*; for the National Association of Criminal Defense Lawyers by *Justin D. Weitz*, *Stephanie Schuster*, *Matthew D. O'Keefe*, and *Barbara E. Bergman*; and for the National Association of Federal Defenders by *Jo-Ann Tamila Sagar*. *Kyle Therrian* and *Nicole DeBorde Hochglaube* filed a brief for the Texas Criminal Defense Lawyers Association as *amicus curiae* urging vacatur and remand.

Lucian E. Dervan filed a brief for the Plea Bargaining Institute as *amicus curiae*.